

Colorado Department of Labor and Employment

Division of Oil and Public Safety

RETAIL ELECTRIC VEHICLE CHARGER REGULATIONS

7 CCR 1101-19

[Editor's Notes follow the text of the rules at the end of this CCR Document.]

ARTICLE 1 GENERAL PROVISIONS

Section 1-1 Basis and Purpose

The basis and purpose of these regulations is to set forth minimum standards relating to specifications and tolerances for retail electric vehicle charging equipment and methods of retail sale at publicly accessible electric vehicle charging stations to promote consistency in the marketplace.

Section 1-2 Technical Rationale

The technical requirements of these regulations are based on generally accepted national and international codes and standards governing the minimum levels of acceptability for inspections, specifications, record keeping, use of meters for measurement, and minimum standards for the design and operation of retail electric vehicle charging systems.

Section 1-3 Statutory Authority

These regulations are created pursuant to 8-20-102 and 8-20-107 of the Colorado Revised Statutes.

Section 1-4 Effective Date

These regulations shall be effective on July 1, 2026.

Section 1-5 Definitions

Terms in these regulations shall have the same meaning as those found in Title 8, Article 20 of the Colorado Revised Statutes. In addition, unless the context otherwise requires:

Alternating Current (AC) – An electric current that reverses direction in a circuit at regular intervals.

California Type Evaluation Program (CTEP) – The evaluation program administered by the California Department of Food and Agriculture, Division of Measurement Standards.

Colorado Revised Statutes (CRS) – The official statutes of the State of Colorado, compiled by the Office of Legislative Legal Services.

Digital Network – An online-enabled application, website, or system offered or used by EVSE that allows a user to initiate a commercial transaction to dispense electrical energy from electric vehicle supply equipment to an electric vehicle.

Direct Current (DC) – An electric current that flows in one direction.

Direct Current Fast Charger (DCFC) – An EVSE capable of supplying direct current (DC) electricity to a vehicle fitted with the appropriate connection to support refueling the vehicle's energy storage battery.

Director – The Director of the Division of Oil and Public Safety of the Colorado Department of Labor and Employment or any designees thereof which may include certain employees of the Division of Oil and Public Safety of the Colorado Department of Labor and Employment or other persons.

Division – The Division of Oil and Public Safety, which is the regulatory agency of the Colorado Department of Labor and Employment, having jurisdiction over retail electric vehicle charging per the provisions of CRS 8-20-102 (5).

Electric Vehicle Supply Equipment (EVSE) – Equipment for plug-in charging, including the ungrounded, grounded, and equipment grounding conductors, and the electric vehicle connectors, attachment plugs, personnel protection system, and all other fittings, devices, power outlets, or apparatus installed specifically for the purpose of transferring energy between the premises wiring and the electric vehicle.

Electricity as Vehicle Fuel – Electrical energy transferred to and/or stored onboard an electric vehicle primarily for the purpose of propulsion.

Kilowatt (kW) – A unit of power equal to 1,000 watts (W).

Kilowatt-hour (kWh) – A unit of energy equal to 1,000 watthours (Wh).

Level 1 EVSE – An EVSE capable of supplying 120 volt alternating current (AC), single phase electricity to a vehicle fitted with an on-board charger that can accept and convert that AC electricity into DC electricity to refuel the vehicle's energy storage battery.

Level 2 EVSE – An EVSE capable of supplying 208 to 240 volt alternating current (AC), single phase electricity to a vehicle fitted with an on-board charger that can accept and convert that AC electricity into DC electricity to refuel the vehicle's energy storage battery.

Manufacturer's Certificate of Accuracy – Documentation of a metrological accuracy test of the device conducted for the device manufacturer by an RSA in

accordance with the testing requirements outlined in NIST HB44 and these regulations.

National Type Evaluation Program (NTEP) – Means the evaluation program administered by the National Conference on Weights and Measures.

NFPA – The National Fire Protection Association.

NIST – The National Institute of Standards and Technology.

NCWM – The National Council on Weights & Measures.

Placed into Service – The official authorization for a weighing, measuring, or counting device to be used for commercial purposes, carried out by a representative of the Division or a Registered Service Agency.

Proved – The act of having verified the accuracy of meters used to measure electricity as a vehicle fuel using a prover.

Publicly Accessible EVSE – An EVSE and associated parking space or spaces designated by a property owner or lessee to be available to, and accessible by, the public for any period of time.

Registered Serviceperson – Any individual who is authorized by the Director to prove and seal as correct a commercial weighing or measuring device on behalf of a Registered Service Agency and who voluntarily registers with the Division.

Registered Service Agency (RSA) – Any agency, firm, company or corporation that is authorized by the Director to prove and seal a commercial weighing or measuring device as correct, and that voluntarily registers with the Division. Under agency registration, identification of individual servicepersons shall be required.

Retail Electric Vehicle Charging – A publicly accessible electric vehicle charging station where a retail consumer's financial charge for service is based wholly or partially on the quantity of electricity dispensed in vehicle fuel applications.

State Inspector – A person who is employed or authorized by the Division to perform inspections of retail electric vehicle charger facilities.

Watt (W) – The practical unit of electric power. In an alternating-current (AC) circuit, the power in watts is volts times amperes multiplied by the circuit power factor.

Watt-hour (Wh) – The practical unit of electric energy that is expended in one hour when the average power consumed during the hour is one watt.

Section 1-6 Codes, Documents, or Standards Incorporated by Reference

The following codes are incorporated by reference.

- (a) NIST Handbook 44 *Specifications, Tolerances, and Other Technical Requirements for Weighing and Measuring Devices*, 2025 edition. Copies of these documents from the NIST are available at the NIST's website, www.nist.gov, 100 Bureau Drive, Gaithersburg, MD 20899.
- (b) NIST Handbook 130, *Uniform Laws and Regulations in the Areas of Legal Metrology and Engine Fuel Quality*, 2025 edition. Copies of these documents from the NIST are available at the NIST's website, www.nist.gov, 100 Bureau Drive, Gaithersburg, MD 20899.

Section 1-7 Inspection of Incorporated Codes

Interested parties may inspect the referenced incorporated materials by contacting the Division of Oil and Public Safety at 707 17th Street, Suite 2400, Denver, Colorado 80202.

Section 1-8 Later Amendments not Included

This rule does not include later amendments to or editions of the incorporated material.

Section 1-9 Applicability

The regulations contained herein shall apply to the operation of all retail electric vehicle chargers in Colorado, except the following:

- (a) Those that are owned, maintained, or used by a public utility as described in Section 40-1-103 of the Colorado Revised Statutes,
- (b) Those used solely for dispensing electrical energy in connection with operations in which the amount dispensed does not affect customer charges or compensation, such as free workplace or fleet charging, free charging at multi-family units, or where free charging is offered as an amenity,
- (c) Those associated with the wholesale delivery of electricity, and
- (d) Those associated with charging vehicles at private residences, where a retail transaction does not take place.

ARTICLE 2 EVSE INSTALLATION AND REGISTRATION

Installation of retail EVSE must comply with requirements from local authorities having jurisdiction, including fire departments and building code officials. Some of these entities adopt NFPA 70E, National Electric Code, or the International Fire Code (IFC), both of which include good safety standards for EVSE installations.

Section 2-1 Registration

- (a) For all retail EVSE placed into service after July 1, 2026, each owner/operator of retail EVSE must register their equipment with the Division within 30 calendar days after the first day on which the EVSE is placed into service, using a form provided by the Division.
 - (1) For retail EVSE placed into service prior to July 1, 2026, each owner/operator must register their equipment with the Division by January 1, 2027, using a form provided by the Division.
- (b) This registration must include the following information:
 - (1) Owner/Operator contact information including company name and primary contact details;
 - (2) EVSE location information including facility name, address, geographic coordinates, and facility type; and
 - (3) EVSE information including manufacturer, model number, and serial number; installation date(s); the name of the digital network utilized for the transaction; EVSE type (Level 2 or DCFC); nominal voltage, current supported (amps), and power supported (kilowatts); and number of ports and connection types (e.g., SAE J1772, J1772 Combo, CHAdeMO).
- (c) Retail EVSE owners/operators must notify the Division within 30 days of having removed or otherwise taken their retail EVSE out of service, using a form provided by the Division.

Section 2-2 Registered Service Agency and Registered Serviceperson Requirements

- (a) Registered Service Agencies (RSAs) must register their company with a form provided by the Division.
- (b) The metrological test equipment utilized by the RSA to conduct retail EVSE testing must be certified in accordance with the manufacturer's recommendation or every two years by a third party, and the RSA must provide the Division with a traceable certificate of conformance (CC).

- (c) To become a Registered Serviceperson, applicants must complete either the NCWM RSA: Electric Vehicle Fueling System exam or other training equivalent approved by the Division, submit a certificate of completion and register via a form provided by the Division.

ARTICLE 3 RETAIL EVSE STANDARDS

The method of sale and measurement of electricity for retail electric vehicle charging are regulated by the Director to ensure consumer protection and equity in the marketplace. This article lists the minimum specifications and tolerances for EVSE to ensure compliance with Colorado statutes and adopted codes and standards. Further description of these requirements can be found in guidance documents, policies and procedures provided by the Director.

Section 3-1 Retail EVSE Design and Operation Requirements

- (a) All retail EVSE shall be operated and maintained in accordance with the applicable requirements of the codes incorporated by this regulation.
 - (1) Retail DCFC EVSE are deferred from NIST HB 44 requirements on Accuracy Testing, Load Test Tolerances, and Indication of Delivery until January 1, 2028.
- (b) Any retail EVSE installed after July 1, 2026, shall have an active certificate of conformance (CC) from the National Type Evaluation Program (NTEP) prior to installation or use for commercial purposes.
 - (1) By July 1, 2030, retail EVSE installed prior to July 1, 2026, shall have an active certificate of conformance (CC) from either the National Type Evaluation Program (NTEP) or the California Type Evaluation Program (CTEP), or be approved by the Director. Failure to do so shall result in the EVSE being taken out of service.
- (c) All retail EVSE installed after July 1, 2026, shall be legibly and permanently labeled, in a manner that is visible to inspectors and consumers, with information about voltage, whether the voltage is alternating current (AC) or direct current (DC), amperage, the EVSE serial number, and the NTEP CC number. In addition, the name and contact information for the owner or operator of the EVSE must be displayed.
 - (1) Retail EVSE placed into service prior to July 1, 2026, shall meet these labeling requirements, with the exception of the NTEP CC number, by July 1, 2027, or shall be taken out of service.
- (d) All retail EVSE placed into service after July 1, 2026, shall provide information at the point of sale including electrical energy, parking and/or usage fees, the unit price per kilowatt-hour, and the total price of each transaction.

- (1) EVSE capable of applying multiple unit prices over the course of a single transaction shall also be capable of indicating the start and stop time, the total quantity of energy delivered, the unit price, and the total price for the quantity of energy delivered during each discrete phase corresponding to one of the multiple unit prices.
- (2) EVSE capable of applying additional fees for time-based and other services shall also be capable of indicating the total time measured; the unit price(s) for the additional time-based service(s); the total computed price(s) for the time measured; and the total transaction price, including the total price for the energy and all additional fees.
- (3) Retail EVSE placed into service prior to July 1, 2026, shall meet these requirements by July 1, 2030, or shall be taken out of service.

Section 3-2 Retail EVSE Inspection, Testing, and Enforcement

- (a) For any new or remanufactured retail EVSE installed at a new or existing location after July 1, 2026, or upon replacement of the metrological meter on any device installed prior to July 1, 2026, the owner/operator shall submit a placed in service form provided by the Division and completed by an RSA within 90 days of placing the EVSE into service.
 - (1) An owner/operator of a new EVSE that has a manufacturer's certificate of accuracy including the device serial number, and that is traceable and completed by an RSA, may submit that document as proof of metrological accuracy testing. The remaining tests and observations required by the Division's placed in service form must be completed by an RSA as part of placing the device into service.
- (b) For any retail EVSE installed prior to July 1, 2026, the owner/operator shall submit a placed in service form provided by the Division and completed by an RSA before July 1, 2030.
 - (1) An owner/operator of any retail EVSE installed prior to July 1, 2026, that has a traceable manufacturer's certificate of accuracy including the device serial number, that was issued within five (5) years prior to the date of EVSE registration with the Division, may submit that document as proof of metrological accuracy testing. The remaining tests and observations required by the Division's placed in service form must be completed by an RSA at the installation location.
- (c) The Division may inspect a retail EVSE facility upon or following being placed into service to verify compliance with the requirements in these regulations. Retail EVSE owners shall grant inspection access to the Division or its agent for such purpose upon request.

- (d) All retail EVSE shall be proved and sealed as correct at least once every five (5) years from the initial placed in service date described in 3-2(a) and (b) by an RSA.
- (e) After July 1, 2027, if any retail EVSE fails to comply with any of the provisions of this regulation, a state inspector may seal it in such a manner as to prohibit its use. At that time, OPS will notify the owner/operator of the requirements to achieve compliance. It shall remain sealed until it complies with all of the provisions of this regulation.
 - (1) When retail EVSE is brought back into compliance with this regulation, it must be placed back in service by an RSA.
- (f) All retail EVSE shall comply with the minimum standards as prescribed by the applicable sections of the codes incorporated by this regulation except as modified or rejected by this regulation or by the Division.
- (g) Any retail EVSE that has had any component replacement, software change, or adjustment that could affect the accuracy of deliveries must be brought back into service by an RSA.

Section 3-3 Advertisements and Street Sign Prices (Where in Use)

- (a) If street signs are used to advertise price, the unit price must be in terms of price per kilowatt-hour in whole cents (e.g., \$0.35 per kWh, not \$0.359 per kWh), and it must match the accurately rounded unit price indicated by the EVSE.

Editor's Notes

History

New rule eff. 07/01/2026.